

(10) years prior to Plaintiff's lawsuit; see evidence cited in support of UMFs 7, 8, 10, 11, 13, 14, 15, 18, 20, and Reply Exhibit 9 regarding these facts.

This shifts the burden to Plaintiff to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2). Here, Plaintiff's stated authority and evidence in opposition does not raise a triable issue of material fact. Therefore, Defendants' motion for summary adjudication is granted.

The motion for summary adjudication as to Defendant JELD-WEN is DENIED WITHOUT PREJUDICE. Defendant JELD-WEN failed to file, as required, a separate statement supported by admissible evidence setting forth the specific facts supporting its entitlement to summary adjudication.

The motion for summary adjudication as to Defendant J.R. Pierce Plumbing is DENIED WITHOUT PREJUDICE. Defendant Pierce Plumbing failed to file, as required, a separate statement supported by admissible evidence setting forth the specific facts supporting its entitlement to summary adjudication.

Defendant K. Hovnanian is directed to submit a written order to the court consistent with this ruling and in compliance with California Rules of Court, rule 3.1312.

22CV-04217 Arcelia Ochoa vs Marcos Renteria AG Services, Inc., et al.

Status Review of Settlement

CONTINUED to October 6, 2026, at 8:15 a.m. in Courtroom 8, for Plaintiff to file a proper declaration and request for entry of judgment based on Defendant's alleged non-compliance with the settlement agreement.

The statement filed August 5, 2026, does not contain a declaration regarding non-compliance. Although Plaintiff asserts that an abstract of judgment was mailed to the court on July 27, 2026, no documents have been lodged as of August 10, 2026.

23CV-00355 Elizabeth De La Garza vs City of Merced, et al.

Motion for Summary Judgment

Defendant AJG's motion for summary judgment is GRANTED.

Defendant's request for judicial notice is GRANTED.

Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant AJG is entitled to judgment as a matter of law.

Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that negate the element of duty and establish the alleged condition was trivial.